

Gift of a charge, and "subject thereto" to A.—Again, if an estate be settled to the use of trustees for a term of *ninety-nine years, upon trusts that [*155] do not exhaust the whole interest, and from and after the expiration, or other sooner determination of the said term, and *subject thereto*, to uses in strict settlement, the surplus of the term will be in trust, not for the heir, but for the devisees in remainder, for here the intention is express, that subject to trusts which have been exhausted, the remaindermen shall take the whole estate (*a*). So where an estate was devised to trustees upon trust within one year after the testator's decease to raise 2000*l.* and "after raising the same" upon trusts in strict settlement, the Court held the 2000*l.* to be a charge upon and not an exception out of the estate (*b*).

"Subject thereto" implied.—And if the limitation be to trustees for ninety-nine years upon the trusts thereafter expressed, and the instrument makes no mention of the trusts, and from and after the expiration, or other sooner determination of the said term to uses in strict settlement, the Court will consider the intention to be clearly *implied*, that the remaindermen should have the beneficial enjoyment subject to the term, and will read the will, as if the words *subject thereto and to the trusts thereof* had been actually expressed (*c*).

[Charge if actually raised reverts as personal estate.—If the amount charged be actually raised, and subsequently the trusts effecting it fail, so that it reverts to the devisee of the estate subject to the charge, the devisee will take it as *personal estate*, for there is no purpose requiring that it should be turned into land again, and no equity in any person to have it laid out in land (*d*).]

of Richards, C. B. Dan. 235, and of Lord Eldon, ib. 338.

(*a*) Davidson v. Foley, 2 B. C. C. 203; Marshall v. Holloway, 2 Swans. 432; Lord Southampton v. Marquis of Hertford, 2 V. & B. 54; and see Maundrell v. Maundrell, 10 Ves. 259; [*Re Newberry's Trusts*, 5 Ch. D. 746.]

(*b*) *Re Cooper's Trusts*, 4 De G. M. & G. 757; S. C. 2 Eq. Rep. 65.

(*c*) *Sidney v. Shelley*, 19 Ves. 352; S. C. *nom. Sidney v. Miller*, G. Coop. 206; overruling the dictum of Lord Hardwicke, in *Brown v. Jones*, 1 Atk. 191.

[(*d*) *Re Newberry's Trusts*, 5 Ch. D. 746.]